

The Concept of Reasonable Expectation in Personal Data Protection Law: A Comparative Analytical Study

مفهوم التوقع المعقول في نظام حماية البيانات الشخصية: دراسة تحليلية مقارنة

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ABSTRACT

One of the fundamental principles in personal data protection is that data must be processed in a "fair" manner. In this context, fairness is defined as processing that falls within the "reasonable expectation" of the data subject. The concept of "reasonable expectation" has been adopted in various legal systems around the world, including the IR of the Saudi Personal Data Protection Law. However, given the relative novelty of the Saudi regulatory framework, the practical boundaries and applications of this concept remain insufficiently clear. Using a comparative analytical methodology, this study critically examines the concept of "reasonable expectation" and explores its dimensions by analyzing its application within the American and European legal systems, which serve as leading reference models. The study seeks to advance the understanding of this concept within the Saudi context, contributing to a more effective balance between the protection of individual rights and the operational needs of data processing. Its novelty lies in proposing a tailored test for assessing "reasonable expectations" aligned with the Saudi PDPL. The findings indicate that the notion of "reasonable expectation" requires balancing the individual's subjective belief, prevailing societal norms, and the technological environment. The study recommends developing a framework that integrates Shariah principles with international standards of transparency and fairness, while also enhancing regulatory guidelines to better protect individual rights and keep pace with technological advancements.

Keywords: Personal Data, Privacy, Reasonable Expectation, Saudi Personal Data Protection Law (PDPL), General Data Protection Regulation (GDPR)

المخلص

يعدّ ضمان إتمام معالجة البيانات بطريقة "عادلة" أحد المبادئ الأساسية في مجال حماية البيانات الشخصية، وتتحقّق العدالة في هذا السياق حين تكون المعالجة ضمن "التوقع المعقول" لصاحب البيانات. ويُستخدم مصطلح "التوقع المعقول" في عدد من الأنظمة القانونية حول العالم، بما في ذلك اللائحة التنفيذية لنظام حماية البيانات الشخصية السعودي. لكن وبالنظر إلى حداثة نظام حماية البيانات الشخصية السعودي، لا تزال الحدود العملية لهذا المفهوم وتطبيقاته غير واضحة، بالاعتماد على المنهج التحليلي المقارن، تسعى هذه الدراسة إلى تحليل مفهوم "التوقع المعقول" وتحديد أبعاده عبر مقارنة تطبيقاته في النظامين الأمريكي والأوروبي بوصفهما نماذج مرجعية رائدة، وتهدف الدراسة إلى تعميق الفهم لهذا المفهوم ضمن السياق السعودي بما يساهم في تحقيق توازن أفضل بين حقوق الأفراد، ومتطلبات معالجة البيانات. وتتمثل جودة الدراسة في وضع اختبار لتقييم "التوقع المعقول" بما يتلاءم مع نظام حماية البيانات الشخصية السعودي. وقد خلصت الدراسة بمجموعة من التوصيات منها: ضرورة تطوير اختبار يدمج القيم الشرعية مع معايير الشفافية والعدالة، وتعزيز الإرشادات التنظيمية لضمان حماية حقوق الأفراد ومواكبة التطورات التقنية.

الكلمات المفتاحية: البيانات الشخصية، الخصوصية، التوقع المعقول، نظام حماية البيانات الشخصية السعودي، اللائحة العامة لحماية البيانات



1. Introduction

The notion of a “reasonable expectation” has long figured prominently in discussions of personal data protection, often serving as a key metric of whether data processing remains fair and legitimate (Solove, 2020). Underpinning this principle is the idea that individuals should not be subject to data practices they cannot reasonably foresee, especially when such practices significantly impact their autonomy or privacy (Koops, 2020). In various jurisdictions, “reasonableness” shapes both the substance of data protection laws and how courts or regulators interpret statutory provisions. However, its specific contours vary widely, influenced by legal tradition, societal norms, and the rapid evolution of technology (Tene & Polonetsky, 2013).

In Saudi Arabia, the PDPL entered into force on 14 September 2023 with a one-year transition ending 14 September 2024. The Implementing Regulations (IR) operationalize core duties—lawfulness, fairness, transparency, purpose-compatibility, data-subject rights, and personal-data-breach notification—and, read with Article 16 of the IR (legitimate interest), treat the data subject’s “reasonable expectation” as a limiting condition on such processing (Bamashmoos, 2025). Following entry into force, Saudi Data & Artificial Intelligence Authority (SDAIA) issued guidance clarifying controller obligations on disclosure, cross-border data transfers, and breach notification; in parallel, many controllers published privacy-policy update notices announcing processing bases, transfer mechanisms, and rights channels. These regulatory and market signals recalibrate what an average data subject may reasonably expect in the Saudi context. Read through Saudi interpretive method, Article 16 of the IR requires that “reasonable expectation” be operationalized within a Shari’a-grounded balance privileging harm-avoidance and transparency. In Saudi practice, controllers invoking legitimate interest should evidence this balance through an auditable expectation-assessment tied to disclosures, purpose-compatibility, and proportionate risk controls.

Without case law to guide local interpretations of what precisely constitutes a “reasonable expectation” in data processing, the Saudi legal community may look

outward to more established frameworks. In other words, until Saudi courts begin to apply or interpret the PDPL, the experiences of jurisdictions with deeper privacy jurisprudence can fill the gap. This is why focusing on external models, particularly those of the United States (U.S.) and the European Union (EU), becomes so crucial.

The U.S. approach traces back to *Katz v. United States* (1967), which introduced the seminal “reasonable expectation of privacy” test into Fourth Amendment jurisprudence (Kerr, 2023). Over time, American law has grappled with whether that expectation should be measured subjectively (the individual’s belief) or objectively (the standards society is prepared to recognize as reasonable). In practice, courts have vacillated between the two prongs, sometimes emphasizing the role of social norms and at other times focusing on legislative enactments or evolving technology norms (Strandburg, 2011). By comparison, the EU model, anchored by the General Data Protection Regulation (GDPR), often references “legitimate expectations” in the context of fair and transparent data processing (Recitals 47 and 50). Although less tethered to a particular Fourth Amendment-style test, the EU framework underscores individuals’ right to privacy and data protection as fundamental, necessitating robust safeguards against unforeseen or disproportionate data uses (Hoofnagle et al., 2019).

For Saudi Arabia, examining these external models helps illustrate how the “reasonable expectation” principle might be construed and operationalized. By referencing the U.S. tradition, Saudi regulators and jurists can appreciate how deeply constitutional or societal norms inform the concept, especially in the face of new technologies like artificial intelligence or large-scale analytics (Tene & Polonetsky, 2013). Meanwhile, the EU experience highlights the importance of legally codified data subject rights and controllers’ obligations. The GDPR’s emphasis on fairness, transparency, and “legitimate interests” might inspire local guidance documents or regulatory rulings.

This article asks two questions: (1) What does “reasonable expectation” mean in personal data law? (2) How can U.S./EU experience inform a Saudi reading

of the PDPL in the current absence of case law? Method: doctrinal + comparative; Output: a lean expectation heuristic and Saudi caselets.

2. Literature Review & Background

A thorough examination of existing legal scholarship on “reasonable expectation” in personal data protection offers essential context for understanding how the principle developed, where it currently stands, and how it might inform the Saudi context. Given that the PDPL lacks judicial interpretation and relevant domestic case law, this section surveys key theoretical texts, official regulations, and comparative materials—focusing on the U.S. and EU—to highlight the concept’s evolution, application, and notable gaps.

2.1 Foundations and Major Theoretical Perspectives

The concept of a “reasonable expectation” first gained prominence in the broader privacy discourse through legal and philosophical works stressing individuals’ autonomy over personal information (Solove, 2020). Early scholarship anchored privacy rights in tort-based approaches (Warren & Brandeis, 1890), emphasizing the individual’s interest in seclusion and freedom from intrusion. However, with the rise of digital technologies, academic discussions evolved to frame privacy not merely as secrecy but also as control over how one’s data is collected, processed, and shared (Tene & Polonetsky, 2013; Koops, 2020). These discussions often revolve around the question of what people can “reasonably” expect from data controllers regarding data handling, notice, and consent.

Many authors identify “reasonableness” as an integral measure of whether data processing is “fair” (Cate et al., 2014). Fairness, in this sense, implies that data subjects are neither blindsided nor taken advantage of through undisclosed or disproportionate practices. Instead, there should be a degree of foreseeability, commonly assessed by balancing data controllers’ legitimate purposes with the data subject’s rights and societal norms (Regulation (EU) 2016679/, art. 5(1)(a), Recital 47; Article 29 Working Party, 2014). Hence, scholarship underscores that fairness and “reasonable expectation” inherently intersect, shaping both legislative provisions and judicial scrutiny.

2.2 Saudi Arabian Context: Official Policy and Regulatory Guidance

The PDPL, along with IR, remains notably untested in the courts (Saudi Personal Data Protection Law, 2021; Executive Regulations of the Saudi PDPL, 2021). As a result, domestic judges have yet to define how the concept of “reasonable expectation” would be applied in actual disputes. This also applies to other provisions referencing fairness or data subject awareness. Consequently, there is a recognized need for clearer interpretations, whether through specialized guidelines or preliminary rulings by administrative bodies. This unresolved point is not merely conceptual: within the Kingdom’s Shari’a-based legal order, clarifying “reasonable expectation” directly affects adjudicatory predictability, regulatory guidance by SDAIA/National Data Management Office (NDMO), and organizational compliance—underscoring the central importance of the research problem.

2.3 Evolution of the Concept in U.S. Jurisprudence

Within U.S. law, the modern articulation of a “reasonable expectation of privacy” stems from criminal procedure contexts, culminating in *Katz v. United States* (1967). Before *Katz*, privacy rights were often tied to property-based or trespass doctrines (Weaver, 2020). *Katz* reframed the analysis, asking whether an individual (1) exhibits a subjective expectation of privacy and (2) whether society is prepared to recognize that expectation as reasonable (Kerr, 2023).

Following *Katz*, American courts have grappled with new technologies—from wiretaps and GPS tracking to cell-site location data (*Carpenter v. United States*, 2018). Scholarship notes that these innovations often challenge the definitional clarity of “reasonable expectation” since evolving norms or user behaviors can alter what people regard as foreseeable intrusion (Strandburg, 2011). Some commentators (Kerr, 2019) argue that courts oscillate between normative judgments (what society ought to consider private) and factual inquiries (what is socially accepted as private). Meanwhile, critics highlight how data subjects rarely have full knowledge of how modern platforms handle their information, raising questions about the extent to which “reasonableness” can be truly subjective or

social (McDonald & Cranor, 2008).

2.4 The EU Perspective on Fairness and Legitimate Expectations

In EU data protection law, the GDPR highlights fairness and legitimate interests as cornerstones of lawful processing (European Parliament and Council, 2016). While the explicit phrase “reasonable expectation” is less common than in U.S. privacy jurisprudence, the GDPR embeds analogous language in several recitals. For instance, Recital 47 clarifies that processing based on a controller’s legitimate interest hinges on whether the data subject’s fundamental rights and freedoms are not “overridden,” taking into account “the reasonable expectations of data subjects based on their relationship with the controller” (Boehm & Cole, 2022). This mirrors how, in a U.S. context, privacy might be assessed by comparing subjective and objective markers of what individuals should anticipate (Kerr, 2023).

Beyond legitimacy, the GDPR repeatedly stresses that transparency is critical for aligning processing with user expectations (Regulation (EU) 2016/679, arts. 12–14; Article 29 Working Party, 2018). For example, Recital 50 addresses further processing for purposes beyond the initial collection, indicating that such use must remain compatible with the original aim. Compatibility is judged partly by “the reasonable expectations of data subjects based on their relationship with the controller,” underscoring how transparent disclosures can help individuals foresee secondary uses (Lynskey, 2015). If subjects cannot realistically predict that further processing—such as archival research or statistical modeling—will occur, controllers risk violating the GDPR’s fairness principle (Cate et al., 2014).

Additionally, Recital 113 deals with limited and non-repetitive data transfers justified by “compelling legitimate interests,” again referencing the notion that controllers must weigh the data subject’s expectations in deciding whether such transfers remain proportionate and lawful. This recital points to the importance of safeguarding fundamental rights, especially when cross-border complexities might reduce individuals’ awareness or control (Hoofnagle et al., 2019).

Overall, these GDPR recitals collectively affirm that “legitimate interests” require more than a mere economic or operational rationale. They demand

a balancing test that factors in the data subject’s perspective: if subjects lack a grounded sense of how or why data might be used, processing could be deemed unfair (Kohl, 2022). This framework offers a clear parallel for the Saudi PDPL, which invokes “reasonable expectation” in its legitimate-interest provision. By incorporating transparent disclosures and ensuring that secondary or international data uses align with user foresight, both EU and Saudi policymakers aim to protect individual rights while allowing for legitimate organizational needs.

2.5 Technology, IT Professionals, and Trust Issues

Significant literature also addresses how “reasonable expectation” resonates beyond pure legal texts, involving practical input from IT professionals, user advocacy, and industry norms. For instance, Tene & Polonetsky (2013) highlight how big data analytics can erode or shift conventional benchmarks of privacy expectation. Similarly, some IT professionals admit difficulty reconciling advanced data-mining practices with the typical user’s perception of “what is fair” (Koops, 2020). Where data subjects remain ignorant of behind-the-scenes processing, legal constructs of “reasonableness” may ring hollow. Academic and professional commentaries (Waldman, 2018) argue that user trust in a platform or data controller heavily influences perceived reasonableness. If an entity has historically respected user privacy or adheres to recognized standards, individuals might reasonably expect continued protective measures. Contrarily, data breaches and privacy scandals can drastically lower user trust, expanding the legal or ethical imperative for explicit disclosures. Collectively, these materials supply the comparative and doctrinal lens used below.

3. Methodology

This study adopts a comparative legal approach to address the gap in Saudi Arabia’s emerging framework on “reasonable expectation” in personal data protection. Given that there is no domestic case law interpreting the PDPL (2021) or its IR (2021), reliance on alternative legal models is necessary to develop a robust understanding of how courts might apply the concept in practice. As Creswell (2007, pp. 76–77) notes, transparent methodologies are essential to

demonstrate how the chosen approach helps overcome limitations in local jurisprudence.

The U.S. standard, epitomized by *Katz v. United States* (1967), offers a seminal articulation of “reasonable expectation” based on (1) an individual’s subjective privacy belief and (2) society’s objective recognition of that belief. This “Katz test” remains influential in American law, including subsequent rulings like *Carpenter v. United States* (2018), which further clarified privacy protections in the context of evolving technologies. The inclusion of the Katz analysis serves as a doctrinal anchor: its principle of balancing subjective and objective privacy expectations may illuminate how Saudi courts could interpret similar language in their data protection framework.

From the EU perspective, the GDPR (European Parliament and Council, 2016) embeds a parallel notion of “fairness” that repeatedly references data subjects’ “reasonable expectations” (see Recitals 47, 50, and 113). The GDPR’s emphasis on transparency, legitimate interests, and compatibility of further processing mirrors key concerns of Saudi regulators who must adjudicate on whether data collection and usage practices unfairly exceed individuals’ awareness or consent (PDPL IR, Art. 16). Therefore, analyzing the EU’s approach—especially its fairness principle and legitimate interests balancing—complements the U.S. Katz model and rounds out a comparative lens.

In choosing these frameworks, potential language barriers (e.g., translations of EU legal texts) and incomplete coverage (e.g., variations in Member State laws, ongoing American debates about Fourth Amendment boundaries) are acknowledged limitations. Nevertheless, this comparative inquiry, combining doctrinal analysis with cross-jurisdictional comparisons (Katz vs. GDPR), is well positioned to yield insights for Saudi decision-makers. Such an approach is particularly apt where an undeveloped domestic jurisprudence requires leveraging foreign legal doctrines to guide the interpretation and eventual case-by-case refinement of “reasonable expectation” in Saudi personal data law.

4. Defining “Reasonable Expectation” in Personal Data Protection

Crafting a workable definition of “reasonable expectation” in personal data protection requires

examining multiple layers: the subjective stance of the data subject, the prevailing societal norms or “objective” marker of reasonableness, and the accelerating impact of technology. This so-called tripartite analysis (Wilkins, 1987)—sometimes formulated as subjective expectation, societal recognition, and technological context—provides a structured lens through which courts and lawmakers can evaluate whether individuals’ data-related assumptions are legitimate.

4.1 Doctrinal or Conceptual Breakdown

From a doctrinal standpoint, “reasonable expectation” has frequently been discussed in tandem with the fairness principle. Under many legal regimes, privacy or data protection laws must strike a balance between a controller’s legitimate interest in collecting or using data and the rights or autonomy of data subjects (Solove, 2020). Where data processing aligns with what individuals can reasonably foresee, it is often labeled “fair.” Conversely, if processing significantly surpasses the type or extent of activities that individuals typically anticipate, it risks being deemed unlawful or disproportionate (Koops, 2020).

In practice, legal scholars usually approach “reasonable expectation” by referencing early tort-based articulations (Warren & Brandeis, 1890), followed by modern expansions in constitutional or data protection contexts. *Katz v. United States* (1967) introduced a now-classic framework in U.S. law: (1) a person’s subjective belief that their conduct or data is private, and (2) whether society considers that belief objectively reasonable (Kerr, 2023). While Katz arose from criminal procedure, its logic informs civil data-protection discourse, underscoring that privacy evolves with “socially and legally recognized boundaries” (Weaver, 2020).

Within the European Union, Recitals 47 and 50 of the GDPR similarly embed the notion of data subject “expectations,” although less formally labeled “reasonable expectation.” These recitals stress that processing, especially under a “legitimate interests” basis, should not override the rights or freedoms of

data subjects if they “could not reasonably expect” such processing (European Parliament and Council, 2016). That language, akin to U.S. constitutional privacy standards, invites a normative question: if a data controller’s practice is unforeseeable to an average user, can it still be fair or proportionate (GDPR Recital 47; WP29 Opinion 062014/)?

4.2 Saudi Arabian Perspective

Turning to Saudi Arabia, the PDPL (2021) provides explicit references to fairness and reasonableness, but the local jurisprudence remains uncharted due to a lack of judicial precedents (Executive Regulations of the Saudi PDPL, 2021). Article 16 of the IR, for instance, mentions that controllers may process data for legitimate interests “provided the processing falls within the reasonable expectations of the data subject,” yet the text does not expand on how to measure those expectations.

Building directly on that indeterminacy, SDAIA’s post-PDPL instruments collectively operationalize—and thereby help measure—the “reasonable expectation” condition in Article 16: the Privacy Policy Guideline requires salient, plain-language disclosure of purposes, legal bases, recipients, cross-border destinations, retention, and rights, so opaque notices or unannounced purpose expansion undercut foreseeability; the Minimum Personal Data Determination Guideline limits collection to strict necessity and non-deceptive means, meaning “just-in-case” or covert gathering exceeds what individuals may reasonably anticipate; the Personal Data Disclosure Cases Guideline reiterates that disclosures under legitimate interests must themselves remain within the data subject’s reasonable expectations; the Records of Processing Activities guidance and cross-border transfer framework (including standard contractual safeguards, BCRs, and a structured transfer risk assessment) render recipients and international exposures auditable, such that undisclosed or inadequately assessed transfers step beyond what an average data subject can foresee; and the Personal Data Breach Incidents Procedural Guide, together with governance measures (e.g., appointing

a DPO and, where applicable, controller registration), reinforce the expectation of integrity, accountability, and controlled processing. Read together, departures from these notices, minimization, compatibility, transfer-assessment, record-keeping, security, and governance touchpoints supply concrete evidence that a controller’s practice breaches the PDPL’s “reasonable expectation” threshold.

While no published judicial opinions or specialized administrative rulings have yet elaborated on Article 16’s “reasonable expectation” standard, the SDAIA instruments just canvassed presently supply the operative benchmark for assessing foreseeability in Saudi practice; until case law emerges, courts are likely to supplement these domestic materials with comparative jurisprudence and doctrinal analysis from cognate jurisdictions.

Moreover, while the PDPL discusses obligations such as transparency, explicit consent, and purpose limitation, it does not supply a mechanism for testing whether data subjects’ beliefs about usage, storage, or third-party sharing are “reasonable.” Scholars in Saudi Arabia thus note that courts may look to external benchmarks, including the Katz standard or GDPR recitals, especially if local compliance disputes emerge. These foreign frameworks can guide domestic judges in deciding whether a controller’s actions, like extensive profiling or data analytics, substantially exceed what a typical consumer might predict upon handing over their data (Abdullah, 2020).

As a domestic doctrinal compass complementing the comparative analysis, Islamic legal maxims help specify what counts as “reasonable expectations” under Article 16(d) of the IR of the Saudi PDPL. The no-harm maxim holds that preventing harm takes precedence over securing benefit and that processing must not impose disproportionate or avoidable harm (Zarqā, 14091989/, p. 165). The agency/best-interest maxim requires any actor processing on behalf of another to act in that party’s best interest (Subkī, 14111991/, vol. 1, p. 310). Accordingly, controllers invoking legitimate interest should document concrete risk mitigation,

proportionality of expected benefits to residual risks, and transparent, purpose-compatible secondary uses; otherwise, the processing falls outside a data subject's reasonable expectations and fails the balancing test (Alobaidan, 2024; Saudi Personal Data Protection Law, 2021).

4.3 Tripartite Approach: Subjective, Societal, Technological

4.3.1 Subjective Expectation

The first component asks whether a given data subject subjectively believes their personal information remains protected. For instance, if a user clicks "I agree" on a website privacy policy, do they personally assume that data is used only to finalize a transaction? This subjective prong can be undermined when disclaimers are buried in small print or when a social media platform notoriously reuses data in ways that diverge from earlier statements (Lynskey, 2015).

4.3.2 Societal Recognition

Next, the approach gauges whether that subjective belief aligns with the broader social or legal consensus. Courts often weigh how average citizens perceive data usage. If the practice resembles a widely known arrangement (e.g., banks sharing transaction data only with affiliates for security checks), a user's claim of an "unreasonable intrusion" might fail (Kohl, 2022). Conversely, if the data usage is obscure—like unpublicized facial recognition scanning in public squares—societal norms might deem such usage beyond the scope of general acceptance (*Bridges v. Chief Constable of South Wales Police*, 2020).

4.3.3 Technological Context

A distinctive feature of modern data processing is the rapid evolution of technologies that can disrupt or reshape privacy boundaries. As "Privacy and the Question of Technology" underscores (Austin, 2003), what was once private might be swiftly cataloged or aggregated by advanced analytics. DNA-based identification, automated facial recognition, and big-data micro-targeting all intensify the capacity to re-identify individuals from minimal data (*Big Brother Watch and Others v. the United Kingdom* (2021)). If these capabilities are not transparent, or widely known, users could not reasonably foresee them.

Courts, regulators, and organizations face an elasticity dilemma: each new technology can open novel ways to gather or correlate personal details, prompting a re-evaluation of "reasonable."

4.3.4 Expectation-Weighting Heuristic (Article 16) **Before invoking legitimate interest, record a short expectation check:**

Relationship & power (e.g., employer–employee).

Salient disclosure of this specific processing (not generic "analytics").

Purpose-compatibility with the original collection.

Intrusiveness (volume, sensitivity, biometrics).

Societal baseline today (sector norms, guidance, prior notices).

Tech amplifiers & mitigations: profiling, cross-context tracking, model training → counter with opt-out, minimization, short retention, on-device.

Tiebreaker: where the balance is close, apply no-harm / best-interest to favor the data subject.

Outcome: within / outside the data subject's reasonable expectation.

4.4 Elasticity in Light of Emerging Technology

Elasticity means that "reasonable expectation" may shift over time as public awareness grows or as technology normalizes once-radical practices (Solove, 2020). Under the triadic lens, the subjective dimension might evolve if users become more accustomed to (or resigned about) data collection. Societal norms could adapt too; for example, constant geolocation tracking might eventually be viewed as standard for rideshare or delivery apps (*WM Morrisons Supermarkets plc v. Various Claimants* (2020)). Yet the technological dimension often moves faster, sometimes outpacing both user knowledge and legislative control (Tene & Polonetsky, 2013).

In Saudi Arabia, calibrating "reasonable expectation" must expressly address AI-enabled processing under Article 16 of the IR of the Saudi PDPL (legitimate interest; Art. 16(d)). AI profiling, automated decision-making, model-training reuse, and biometric identification often exceed what an average data subject can plausibly foresee. Controllers should treat such processing as outside reasonable expectation unless: (i)

salient, intelligible notices cover training and inference uses; (ii) purpose-compatibility is demonstrated in light of the controller–data subject relationship; and (iii) human-in-the-loop safeguards and DPIAs are in place. Facial-recognition jurisprudence underscores the expectation gap (*Bridges v. Chief Constable of South Wales Police*, 2020; *Big Brother Watch and Others v. United Kingdom*, 2021), and *Schrems II* cautions against opaque, disproportionate analytics (*Case C311/18*, 2020; *Tene & Polonetsky*, 2013).

Overseas precedents such as *Google LLC v. CNIL* (*Case C-5072019*, 17/) illustrate how even widely recognized data-use models (e.g., search engine indexing) can conflict with user demands for privacy, such as the “right to be forgotten.” In bridging the gap, courts rely on recitals referencing users’ “legitimate expectations of privacy” when data is processed for new or extended aims. Whether that concept translates seamlessly to Saudi Arabia is open-ended, but the logic is instructive: a strong emphasis on transparency, limited further processing, and robust consent can uphold the principle of fairness that underpins any reasonable expectation test.

5. Comparative Analysis: U.S. & European Union

A comparative look at how “reasonable expectation” functions in U.S. and EU law helps illustrate key similarities and contrasts that may prove instructive for Saudi Arabia’s emerging data protection framework. The U.S. locates its standard in Fourth Amendment doctrines, especially *Katz v. United States* (1967), while the EU draws on the GDPR’s fairness principle and the Court of Justice of the EU (CJEU) jurisprudence. Both systems grapple with evolving technologies and shifting societal norms, though each places emphasis on different legal underpinnings.

5.1 U.S. Perspective

5.1.1 Historical Foundation: *Katz* and the Fourth Amendment

In *Katz v. United States* (1967), the Supreme Court famously departed from the older trespass-focused logic and instead centered its inquiry on whether an individual (1) had a subjective expectation of privacy and (2) whether that expectation was one society

recognizes as reasonable (Kerr, 2023). This two-pronged test fundamentally reshaped American privacy jurisprudence, making “reasonable expectation” the linchpin in determining when government searches or surveillance violate the Fourth Amendment (Weaver, 2020). Notably, Justice Harlan’s concurrence in *Katz* underscored that privacy hinges not merely on property rights but on whether a person’s privacy belief is societally valid.

Over the decades, the U.S. Supreme Court has elaborated on *Katz*. For example, in *California v. Ciraolo* (1986), the Court found no reasonable expectation of privacy for aerial observations of a backyard, reasoning that what is plainly visible from public airspace does not meet society’s threshold of protection. Such reasoning is heavily fact-driven and often depends on whether technology and vantage points exceed what the average person might foresee (Kerr, 2019).

5.1.2 Current Controversies and Digital Data

Expansion

Modern controversies have arisen around the collection of digital data—particularly location-based or metadata. In *Carpenter v. United States* (2018), the Court tackled historical cell-site location information (CSLI), ultimately holding that obtaining such data without a warrant violated an individual’s reasonable expectation of privacy in their movements. The majority emphasized that pervasive digital tracking is far more revealing than older technologies, thus requiring heightened judicial scrutiny.

Additionally, the Stored Communications Act (SCA), found at 18 U.S.C. §§ 2701–2712, implicitly references the concept of user expectations. Though not labeled “reasonable expectation,” the SCA’s provisions about obtaining electronic communications from service providers implicitly assume that unauthorized third parties should not access personal messages or stored data (Kerr, 2023). Yet, critiques persist that the SCA lags behind modern realities, such as cloud-based services or cross-border data flows.

5.1.3 Insights from the U.S. Model

Overall, the U.S. model highlights how “reasonable expectation” must adapt continuously to emergent technologies—from phone booths in *Katz* to smartphones and cloud computing today. Courts

typically evaluate what society is prepared to recognize as private, balancing government needs against individual autonomy (Kerr, 2019). This balancing act, while often criminal in orientation, resonates with broader data-protection concerns: if advanced analytics or aggregated metadata exceed user knowledge, courts may well find that practices intrude upon a recognized privacy interest.

5.2 EU Perspective

5.2.1 GDPR Emphasis on Fairness, Transparency, and User Rights

While the EU does not expressly rely on the Katz formula, the notion of “reasonable expectation” implicitly threads throughout its data-protection rules. Article 5(1)(a) of the GDPR mandates that personal data be processed “lawfully, fairly and in a transparent manner” (European Parliament and Council, 2016). Several recitals extend this principle: Recital 47 stipulates that data processing is permissible under “legitimate interests” only where those interests do not override the “fundamental rights and freedoms of the data subject,” taking into account “the data subject’s reasonable expectations based on their relationship with the controller” (Boehm & Cole, 2022).

Furthermore, Recital 50 references the compatibility of “further processing” with the original purpose, partly judged by “the reasonable expectations of data subjects.” Scholars note how this fosters a normative check: if secondary uses deviate substantially from what the average user would anticipate, they may breach fairness obligations (Lynskey, 2015). Recital 113 similarly anchors cross-border data transfers in the notion of proportionality and non-repetitive usage, again referencing user awareness and fairness.

5.2.2 Major CJEU Rulings on Legitimate Interests and Expectations

While Katz is not a recognized standard within EU law, the CJEU has engaged with the concept of “expectations” in multiple judgments—especially around legitimate interests, consent, and the scope of user rights. In Case C-31118/ Data Protection Commissioner v. Facebook Ireland Ltd and Maximillian Schrems (“Schrems II”) (2020), the Court invalidated the EU-U.S. Privacy Shield, partly underscoring data

subjects’ expectation for adequate safeguards against government surveillance. Similarly, in Case C-50717/ Google LLC v. CNIL (2019), the Court weighed the “right to be forgotten” against public interest in maintaining online records, again emphasizing whether the scope of data usage matches public and individual expectations. Additionally, decisions like Fashion ID GmbH & Co. KG v. Verbraucherzentrale NRW eV (Case C402019 ,17/) discuss the notion of “user expectations” with respect to website plugins (e.g., Facebook “Like” button), analyzing how data may be transmitted to third parties—an occurrence that data subjects might not foresee. As in the U.S. setting, tension exists between advanced, sometimes opaque, digital practices and the GDPR’s impetus to maintain user trust through clarity and accountability (Kohl, 2022).

5.3 Lessons for Saudi Arabia: Best Practices and Potential Pitfalls

Balancing Act: Both U.S. and EU frameworks demonstrate the importance of balancing user privacy interests against legitimate data processing goals. The PDPL drafters may benefit from delineating explicit criteria for assessing whether an individual’s expectation is legitimately exceeded.

Robust Transparency: The GDPR’s “fairness and transparency” rules underscore that data subjects should not be blindsided by processing activities. If Saudi controllers do not clarify secondary analytics or third-party sharing, they risk straying beyond data subjects’ reasonable expectations. Including recitals or guidelines that specify the scope of permissible processing might be prudent, echoing the EU approach.

Contextual Nuance: Katz famously held that what is “reasonable” may depend on context. Similarly, the GDPR recitals examine whether data subjects “could not reasonably expect” specific processing. Thus, Saudi regulators could adopt a situational approach—what is normal in social media might differ from banking services. Failure to reflect these variances can create interpretive gaps or overbroad rules.

Adaptability to Technology: Both U.S. courts and the CJEU have had to repeatedly revisit privacy logic amid novel technologies like facial recognition (Bridges v. Chief Constable of South Wales Police, 2020 EWCA

Civ 1058), GPS location, and big-data analytics. Saudi lawmakers should anticipate how PDPL's "reasonable expectation" might evolve. Embedding review mechanisms or facilitating regular guidance notes (like an independent data protection authority) can mitigate outdated rules.

Enforcement and Remedies: U.S. controversies over the SCA, or the EU's practical challenges in cross-border data transfers, highlight how laws can falter without consistent enforcement. For the PDPL, ensuring strong enforcement structures—perhaps specialized tribunals or administrative bodies—would build user trust and clarify the boundaries of reasonableness.

Cultural and Legal Fit: Saudi courts must remain mindful that both Katz-inspired tests and GDPR-style fairness are grounded in distinct legal traditions. While parallels exist, local judges must interpret reasonableness in ways that resonate with Saudi cultural norms and the specifics of Shari'ah-based jurisprudence. Over-reliance on foreign precedents, absent local contextualization, can create dissonance or confusion.

In conclusion, drawing from the U.S. approach (with its Katz progeny and expansions) and the EU's concept of legitimate interests under the GDPR, Saudi Arabia can craft a "reasonable expectation" framework attuned to current and emerging technologies. Key to success will be ongoing vigilance, ensuring that new analytics or surveillance capabilities do not circumvent the user's rightful belief in privacy. Ultimately, the PDPL's references to fairness and reasonableness stand to gain richness from both U.S. and EU jurisprudence—provided that domestic courts and lawmakers calibrate these lessons to local conditions, strike a realistic balance between data innovation and protection, and maintain transparent relationships with data subjects.

6. Analysis & Discussion

Building on the doctrinal breakdown (Section 4) and comparative survey (Section 5), this section analyzes how "reasonable expectation" of privacy might be adapted within the Saudi Arabian data protection landscape. We connect the tripartite approach, drawn from Katz-like U.S. logic, and the EU's emphasis on fairness and legitimate expectations to the PDPL's framework and

local realities. Additionally, we incorporate practical insights from IT professionals' views on privacy and trust (Martin et al., 2016).

6.1 Adapting the Tripartite or Katz-Based Approach in Saudi Arabia

6.1.1 Subjective and Objective Elements

In a Saudi context, adopting a tripartite approach—subjective belief, societal norms, and technological considerations—would require careful calibration. On one hand, the PDPL (Saudi Personal Data Protection Law, 2021) references legitimate interests or fairness, echoing the language that individuals' data "must not be processed beyond what a data subject expects" (Executive Regulations of the Saudi PDPL, 2021). Yet local jurisprudence has yet to define how courts will weigh a data subject's subjective belief (e.g., "I thought my data was only for this one transaction") against a more objective sense of reasonableness (Koops, 2020). This tension might parallel the *Katz v. United States* (1967) standard, which asks if the individual's assumption of privacy is genuinely and socially recognized (Kerr, 2023). Saudi judges, however, may not uniformly embrace Katz—especially as the PDPL arises from administrative and civil frameworks rather than the Fourth Amendment-like logic. Still, referencing the Katz concept might guide the judicial line-drawing. For example, if a local consumer consents to data sharing for shipping purposes, a subsequent, unforeseen sale of personal information to advertisers likely violates that consumer's subjective (and arguably societal) expectation.

6.1.2 Cultural Nuances and Islamic Legal Principles

Saudi courts also operate within a broader Shari'ah-based tradition, which values individual dignity and the sanctity of personal life. Integrating a tripartite test might thus find alignment with Islamic notions of harm avoidance (*la darar wa la dirar*), provided each prong is interpreted consistent with Shari'ah. For instance, if a data controller's method clearly poses undue intrusion or humiliation—breaching cultural norms—courts might find no "reasonable" justification. This local cultural dimension parallels how U.S. judges sometimes apply community norms to the second Katz prong

(Weaver, 2020).

6.2 EU-Style Fairness and Legitimate Expectations for Saudi Regulations

6.2.1 Fairness: Beyond Mere Consent

The GDPR's fairness principle offers more than a blanket reliance on consent. It demands processing that respects user "reasonable expectations" (European Parliament and Council, 2016). Saudi regulators could incorporate these insights by clarifying that data subjects must be able to anticipate foreseeable future uses. If a mobile banking app quietly aggregates geolocation data for unrelated analytics, the mismatch with user awareness undermines fairness. By analogy, Recitals 47 and 50 of the GDPR require that "legitimate interests" do not exceed what a typical user might reasonably foresee.

The PDPL provisions on data minimization and purpose specification might be similarly read in tandem with "reasonable expectation," so that extraneous reuses or expansions beyond the original scope violate the law. Official guidelines from the SDAIA or NDMO might specifically codify how controllers must ensure that any secondary data usage is consistent with prior disclosures, bridging the local system and EU "compatibility" recitals (Cate et al., 2014).

6.2.2 Legitimate Interests and the Balancing Test

The EU's "legitimate interests" basis demands a balancing test to ensure data subjects' fundamental rights are not overridden (Kohl, 2022). Notably, The PDPL framework (via the IR, Article 16) references "legitimate interest" but stops short of detailing a method for balancing. This gap is where EU rulings like Case C31118/Data Protection Commissioner v. Facebook Ireland Ltd and Maximillian Schrems ("Schrems II") (2020) can be illustrative. Courts weigh user awareness, data security controls, and the proportionality of processing. If the same reasoning is adopted, local controllers must prove that any extended use or cross-border transfer aligns with user expectations, not just with a cursory mention in a privacy notice.

If the Saudi Ministry of Communications and Information Technology (MCIT) or SDAIA were to issue interpretive guidance akin to the European Data Protection Board's approach, local businesses would gain clarity on whether certain analytics, third-party

data sharing, or AI-driven profiling can remain within a "reasonable expectation." This alignment could simultaneously protect data subject rights and reduce compliance uncertainty for firms.

6.3 The Role of IT Professionals' Perspectives on Privacy and Trust

6.3.1 User-Centric Insights

In their empirical study, Martin, Rice, and Martin (2016) analyzed how IT professionals articulate expectations of privacy when engaging in e-commerce, social networking, and cloud services. Notably, these professionals revealed that even with advanced awareness of data flows, they expected "fair handling" and "no unauthorized third-party data sharing" (p. 506). This aligns with the notion that reasonableness partly depends on user sophistication: if even tech-savvy individuals find hidden analytics or backdoor data exchanges unanticipated, the general public likely has even lower awareness (McDonald & Cranor, 2008). For Saudi Arabia, such insights underscore that "reasonable expectation" is not purely hypothetical. If well-informed IT practitioners feel uneasy about undisclosed aggregator practices, mainstream users may harbor even stronger assumptions that their personal details remain confidential. This reality calls for a robust synergy between technical measures—clear dashboards, encryption defaults—and legal frameworks requiring transparency (Tene & Polonetsky, 2013).

6.3.2 Trust-Building Through Technical and Operational Measures

The same research indicated that user trust might be bolstered when organizations deploy recognized privacy technologies (e.g., TLS encryption, secure authentication), coupled with tangible administrative safeguards. Saudi policymakers might glean from these findings by encouraging or mandating leading industry practices—such as mandatory encryption for personal data and enforceable privacy-by-design principles. These measures can transform "reasonable expectation" from a vague ideal to a lived reality.

Yet, as technology evolves—AI-based facial recognition, biometric identifiers, or large-scale data scraping—IT professionals note the risk that private user information

is pulled into massive data sets with minimal user control or knowledge (*Bridges v. Chief Constable of South Wales Police*, 2020 EWCA Civ 1058). The question remains: how can individuals reasonably foresee such advanced analytics if controllers do not disclose them? Clarifying “reasonable expectation” thus depends on both legal mandates for explicit notifications and the continuing education of IT experts in privacy engineering (Kohl, 2022).

6.4 Synthesis and Future Directions

A Saudi test should keep the Katz-style subjective/objective core and the GDPR’s fairness/compatibility, operationalized through Article 16 notices and minimization. Treat AI/biometrics/cross-context analytics as high-scrutiny unless specifically disclosed and mitigated; periodic guidance can track technology shifts. Courts and regulators can then calibrate “reasonable expectation” to local norms without over-reliance on foreign doctrine.

6.5 Saudi Caselets: Article 16 in Practice

6.5.1 Retail cross-sell (customer data reuse)

Context: A retailer reuses purchase history to micro-target customers via email and mobile application.

Assessment: From a subjective perspective, customers expect service and transactional messages, not granular profiling. At the societal level, marketing communications are common where there is salient disclosure and an easy opt-out. Technologically, cross-channel audience building and inference increase the level of intrusiveness.

Outcome: The practice falls outside reasonable expectation unless the retailer (i) explicitly discloses cross-sell profiling, (ii) offers a frictionless opt-out, (iii) limits inputs to recent and relevant transactions, and (iv) applies short, purpose-bound retention. With these measures in place, narrow same-brand cross-sell can fall within reasonable expectation.

6.5.2 Workplace facial recognition (time and attendance)

Context: An employer deploys facial recognition to record clock-in and clock-out events.

Assessment: Subjectively, employees anticipate attendance tracking but not open-ended biometric reuse. Societally, attendance systems are familiar,

whereas biometric data are sensitive. Technologically, template storage architecture and breach impact materially affect foreseeability.

Outcome: The practice is within reasonable expectation only if it is strictly necessary, facial templates are stored on-device or encrypted, a non-biometric alternative is available without penalty, retention aligns with attendance needs, and any non-attendance uses are excluded absent a fresh assessment and transparent disclosure.

6.6 Legal Liability for Exceeding “Reasonable Expectations” (PDPL Art. 16).

Under the PDPL, “legitimate interest” is a lawful basis only where the controller’s purpose is lawful, necessary, and—critically—falls within the data subject’s reasonable expectations (PDPL Arts. 6(4), 10(7), 15(6); PDPL IR Art. 16(1)(a–d)). Exceeding those **expectations** collapses the legal basis and renders the processing unlawful. Practically, the IR hard-wires this through a prior, documented assessment that identifies the processing and purpose, tests necessity, evaluates potential harm to data subjects and their rights, and specifies risk-avoidance measures; if the assessment shows any legal infringement or harm, the controller must modify the processing or rely on another basis (PDPL IR Art. 16(3)–(4)).

Unlawful processing (including reliance on legitimate interest outside reasonable expectations) attracts a layered liability regime at the PDPL’s conclusion: (i) Administrative enforcement—warning or fines up to SAR 5 million (doubtable on repeat), imposed by a specialized committee, with powers to seize tools used in violations and to publish decisions; courts may also order confiscation of gains, and public entities must discipline offending employees (PDPL Arts. 36–39). (ii) Criminal exposure—where the violation involves intentional disclosure or publishing of Sensitive Data to harm or for personal benefit, imprisonment up to two years or a fine up to SAR 3 million (doubtable on recidivism) may apply (PDPL Art. 35). (iii) Civil liability—any person suffering material or moral damage may claim proportionate compensation (PDPL Art. 40).

Remedial duties interlock with these sanctions: cease the unlawful processing and destroy personal data no longer necessary (PDPL Art. 18); notify the Competent Authority (and affected individuals where risks arise) of any breach or unlawful access (PDPL Art. 20); maintain accurate records of processing and a designated data protection officer to monitor compliance and handle complaints; and cooperate with auditing and complaint procedures before the authority (PDPL IR Arts. 32–33, 36–37). Collectively, these texts make clear that stepping beyond data subjects' reasonable expectations when invoking legitimate interest is not a mere procedural defect but a trigger for administrative, criminal, and civil exposure under the PDPL framework.

7. Conclusion & Recommendations

This article has traced the evolving notion of "reasonable expectation" in personal data protection, comparing how U.S. courts—guided by *Katz v. United States*—and EU frameworks—led by the GDPR's fairness principle and legitimate interests—might guide Saudi Arabia's nascent legal regime. Although the PDPL explicitly references legitimacy and user expectations, the absence of domestic case law leaves a pivotal interpretive gap. By exploring the tripartite or *Katz*-style subjective-objective-technological lens, and the EU's emphasis on transparent disclosures and consent, the Saudi approach can benefit from robust, context-sensitive rules that resonate with local cultural and judicial norms.

The U.S. tradition demonstrates that "reasonable expectation" is not a static concept; it shifts with societal norms and technological realities. Meanwhile, GDPR-style fairness underscores that organizations must balance their legitimate processing needs against users' fundamental rights and plausible foresight about data usage. Together, these lessons show that clarity and adaptability are crucial: too broad a standard may stifle data-driven innovation, while too narrow an interpretation can leave consumers unprotected.

Recommendations

1) Legislative and Regulatory Clarifications:

Saudi legislators or administrative bodies (e.g., SDAIA)

should consider guidelines echoing *Katz*'s two-prong approach, adapted to the PDPL. This might specify how data controllers demonstrate that their processing aligns with user awareness, bridging the concept of "subjective expectation" and "societal recognition" with local Shari'ah-informed values.

2) Controller-Facing Operational Implementation (PDPL Art. 16).

Controllers should adopt a concise, auditable Reasonable Expectation Assessment (REA) when relying on legitimate interest or deploying high-impact processing. The REA scores six factors—relationship/power, salient disclosure for the specific processing, purpose-compatibility, intrusiveness/sensitivity, sector/social baseline, and technology amplifiers versus mitigations—on a 0–2 scale. Decision thresholds: 0–4 = proceed; 5–8 = proceed with specified mitigations and enhanced notice; 9–12 = do not proceed—seek explicit consent or redesign. The completed REA is retained with processing records and refreshed upon material change. This operationalizes the expectation framework developed in §4.3.4 and is illustrated by the Saudi caselets in §7.5.

3) Educational Outreach:

As underscored by IT professionals' perspectives, many data controllers and developers remain unsure how "reasonable expectation" applies to advanced analytics. Government and industry associations could host workshops illustrating best practices, such as designating an internal privacy lead and adopting encryption or privacy-by-design protocols. This fosters a culture of compliance and respect for personal data boundaries.

4) Judicial and Academic Development:

Once Saudi courts begin receiving the PDPL-related disputes, the ensuing case law can refine the boundaries of reasonableness. Academic legal centers should track and analyze these rulings, adding interpretive depth. Comparative legal research should continue, incorporating not just the U.S. and EU, but also other jurisdictions that have faced rapid technology growth. In sum, implementing these recommendations can strengthen Saudi Arabia's data protection architecture, ensuring that the "reasonable expectation" concept

remains practically viable, culturally aligned, and responsive to ongoing technological changes. By embedding transparent norms and championing IT professional engagement, the Kingdom can foster both privacy rights and balanced data innovation.

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